

Agent Selection & Commission Negotiation Checklist — South Australia

Choosing the right agent, and understanding what you're actually agreeing to.

Correct as at July 2026. General information only, not legal advice.

Section 1 — Shortlisting Agents

- ☐ ☐ **Interview at least 3 agents** and compare their recent comparable sales in your specific suburb.
- ☐ ☐ **Ask for a genuine appraisal, not just the highest number** — cross-check against real recent comparable sales.
- ☐ ☐ **Ask how they'll market the property** and get this in writing.
- ☐ ☐ **Check their recent track record for your specific property type.**
- ☐ ☐ **Ask directly about any referral relationships** with conveyancers, stylists, or other service providers, and whether they receive a fee for those recommendations.

Section 2 — Understanding the Agency Agreement

- ☐ ☐ **Understand this is a legally binding contract governed by the Land Agents Act 1994 (SA)** — read every clause, not just the commission rate.
- ☐ ☐ **Confirm the commission rate is negotiable** — it isn't fixed or regulated at a set percentage.
- ☐ ☐ **Clarify exclusive vs. open listing terms** and how long any exclusive period runs.
- ☐ ☐ **Check marketing cost responsibility** — confirm upfront whether costs are included in commission or charged separately, in writing.

Section 3 — Understanding the Form 1 Process

- ☐ ☐ **Ask your agent how they'll coordinate the Form 1 (Vendor's Statement) preparation** — this is typically outsourced to a specialist provider, but your agent should manage the process so it's ready promptly once you're ready to market.
- ☐ ☐ **Understand the Form 1 triggers your buyer's short cooling-off window.** With SA's cooling-off period at just 2 clear business days — the shortest in the country — a clean, complete Form 1 helps your sale progress smoothly without last-minute buyer withdrawal risk from disclosure gaps.

Section 4 — Choosing Your Method of Sale

- ☐ ☐ **Compare auction vs. private treaty for your specific property and market conditions.**
- ☐ ☐ **If going to auction, understand there's no cooling-off period for the buyer at all.**
- ☐ ☐ **Discuss with your agent how SA's especially short cooling-off period (for private treaty) affects buyer behaviour and negotiation** — some buyers may want more assurance before signing given how little time they'll have to reconsider afterward.

Section 5 — Before You Sign

- ☐ ☐ **Have a solicitor review the agency agreement** if you're at all uncertain.
- ☐ ☐ **Clarify the termination process** — what happens if you want to change agents partway through the listing period.
- ☐ ☐ **Confirm who's preparing your Form 1** and the realistic timeline for having it ready.
- ☐ ☐ **Ask for references from recent vendors**, not just buyer testimonials.

Quick Reference — Key Points on SA Agent Agreements

ITEM	DETAIL
Commission rates	Not fixed/regulated — negotiable
Governing legislation	Land Agents Act 1994 (SA)
Form 1 preparation	Typically outsourced to a specialist provider, coordinated by your agent
Buyer cooling-off	2 clear business days (private treaty), none at auction

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